Harris County District Court

Cause No. 2024-CV-0023

Warren Fletcher, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Warren Fletcher

Date:	January 29, 2025
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on a transcript, but you can refer to me as the plaintiff.

Q: Understood. Where were you on the day of the collision?

A: I was driving through League City, Texas, heading to a shop on the north side of town. I was making a left turn at an intersection with a traffic signal.

Q: What happened when you started the turn?

A: I had a green arrow, or at least I believed I did. I started into the intersection and a pickup coming the other way struck the front driver's side of my car.

Q: Did you see the pickup before the impact?

A: Not clearly. I remember a glare from the headlights and then a loud bang. I didn't have time to brake.

Q: What did you do immediately after the collision?

A: I sat for a moment because my hand was throbbing. A bystander came over and asked if I was okay. Then I called my husband and waited for the police to arrive.

Q: Did you seek medical care that day?

A: Yes. I was taken by ambulance to a local emergency room. They took X-rays and told me my wrist was broken.

Q: What was the diagnosis?

A: A fracture of the wrist on my dominant side. They put it in a splint and referred me to an orthopedic specialist.

Q: Have you had surgery or other procedures since then?

A: I had a follow-up visit where the doctor decided a cast was enough at first. Later I was told I might need physical therapy, and I have been attending sessions twice a week.

Q: How has the injury affected your daily life?

A: Simple things are hard. Buttoning a shirt, opening jars, and typing for work all take much longer. I had to ask a coworker to help me carry boxes, and I haven't been able to drive for several weeks without discomfort.

Q: Have you missed time from work?

A: Yes, I took a few weeks off, and I've been working reduced hours since then while my hand heals.

Q: Have you experienced any pain or limitations that persist today?

A: Yes. Cold weather makes it ache, and I still get sharp pain when I grip something heavy. My therapist says improvement is happening, but it's slower than I hoped.